

Amendment No. 1 to SB2399

Bailey
Signature of Sponsor

AMEND Senate Bill No. 2399

House Bill No. 1917*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 8-50-119(b)(1)(A)(i)(a), is amended by deleting the subdivision and substituting:

(a) A licensed professional counselor under title 63, chapter 22, part 1;

SECTION 2. Tennessee Code Annotated, Section 33-1-101(20), is amended by deleting "professional counselor" and substituting "limited practice professional counselor; licensed professional counselor".

SECTION 3. Tennessee Code Annotated, Section 33-3-201(a)(2), is amended by deleting "certified or licensed professional counselor" and substituting "limited practice professional counselor, licensed professional counselor".

SECTION 4. Tennessee Code Annotated, Section 33-6-802, is amended by adding "limited practice professional counselor," immediately after "licensed professional counselor,".

SECTION 5. Tennessee Code Annotated, Section 33-6-804(a), is amended by adding "limited practice professional counselor," immediately after "licensed professional counselor,".

SECTION 6. Tennessee Code Annotated, Section 36-6-413(b)(5)(C)(v), is amended by deleting the subdivision and substituting:

(v) A licensed professional counselor, as defined in § 63-22-122;

SECTION 7. Tennessee Code Annotated, Section 36-6-413(b)(5)(C), is amended by adding the following as a new subdivision:

(ix) A limited practice professional counselor, as defined in § 63-22-122.

SECTION 8. Tennessee Code Annotated, Section 49-2-124(c), is amended by adding the following as a new subdivision:

(10) Limited practice professional counselor.

SECTION 9. Tennessee Code Annotated, Section 52-1-101(14), is amended by deleting "professional counselor" and substituting "limited practice professional counselor; licensed professional counselor".

SECTION 10. Tennessee Code Annotated, Section 52-3-201(a)(2), is amended by deleting "certified or licensed professional counselor" and substituting "limited practice professional counselor, licensed professional counselor".

SECTION 11. Tennessee Code Annotated, Section 56-7-2401(a), is amended by adding "a duly licensed limited practice professional counselor, as defined in § 63-22-122;" immediately after "as defined in § 63-22-115;" and by adding "by a duly licensed limited practice professional counselor;" immediately after "by a duly licensed marital and family therapist;".

SECTION 12. Tennessee Code Annotated, Section 63-1-125(e)(2), is amended by deleting "professional counselor" and substituting "licensed professional counselor, limited practice professional counselor".

SECTION 13. Tennessee Code Annotated, Section 63-1-201(2), is amended by adding the following as a new subdivision:

(K) Limited practice professional counselor licensed under chapter 22 of this title.

SECTION 14. Tennessee Code Annotated, Section 63-11-222(b)(4), is amended by deleting the subdivision and substituting:

(4) Has been practicing as a licensed professional counselor for a period of six (6) or more years in this state;

SECTION 15. Tennessee Code Annotated, Section 63-11-302(6)(I), is amended by deleting the subdivision and substituting:

(I) Licensed professional counselor;

SECTION 16. Tennessee Code Annotated, Section 63-11-302(6), is amended by adding the following as a new subdivision:

(M) Limited practice professional counselor;

SECTION 17. Tennessee Code Annotated, Section 63-11-409(b), is amended by deleting subdivisions (3) and (4) and substituting:

(3) A limited practice professional counselor under chapter 22 of this title;

(4) A licensed professional counselor under chapter 22 of this title;

SECTION 18. Tennessee Code Annotated, Section 63-22-102, is amended by deleting subdivisions (2) and (4) and substituting:

(2) Upon payment of a nonrefundable fee as set by the board, review the credentials of licensure of a limited practice professional counselor and licensed professional counselor applicant to determine if the applicant is eligible for licensure;

(4) License an applicant who meets the requirements in this part for a licensed professional counselor or limited practice professional counselor and establish by rule any additional qualifications of the applicant necessary for the practice of counseling as provided in this part;

SECTION 19. Tennessee Code Annotated, Section 63-22-104, is amended by deleting "professional counselor" and substituting "limited practice professional counselor".

SECTION 20. Tennessee Code Annotated, Section 63-22-104, is amended by designating the existing language as subsection (a) and adding the following as a new subsection:

(b) An applicant for licensure as a licensed professional counselor shall comply with all requirements described in subsection (a) and shall meet the following requirements:

(1) Complete coursework specifically related to the diagnosis, treatment, appraisal, and assessment of mental disorders; and

(2) Complete two (2) years of postgraduate supervised experience required for licensure in a clinical setting that provides substantial opportunities to diagnose, treat, appraise, and assess mental disorders.

SECTION 21. Tennessee Code Annotated, Section 63-22-107, is amended by deleting subsections (a) and (b) and substituting:

(a)

(1) Beginning July 1, 2026, an applicant for licensure as a limited practice professional counselor and a licensed professional counselor shall:

(A) Meet the requirements of §§ 63-22-104 and 63-22-110; and

(B) Pass examinations adopted and administered by the board.

(2)

(A) Beginning July 1, 2028, the board shall not issue a new license for a limited practice professional counselor.

(B) A person who is a licensed limited practice professional counselor as of June 30, 2028, may retain the person's license indefinitely by meeting current renewal requirements or upgrade to be licensed as a licensed professional counselor by meeting the following requirements on or before January 1, 2029:

(i) Be licensed as a limited practice professional counselor, or an equivalent license from another state, for a minimum of two (2) years or be licensed as a licensed professional counselor prior to July 1, 2024;

(ii) Complete a minimum of twelve (12) hours of training specifically related to diagnosis, treatment, appraisal, and assessment of mental disorders approved by the board; and

(iii) Pass the National Clinical Mental Health Counselors Examination (NCMHCE) offered by the National Board for Certified Counselors.

(b)

(1)

(A) The license of a person who was certified as a professional counselor on or before June 30, 1991, must be converted to a limited practice professional counselor license.

(B) The board shall reissue a limited practice professional counselor license to the person as described in subdivision (b)(1)(A).

(2)

(A) The license of a person who is a licensed professional counselor as of June 30, 2026, must be converted to a limited practice professional counselor license.

(B) The board shall reissue a limited practice professional counselor license to the person as described in subdivision (b)(2)(A).

(3)

(A) The license of a person who is a licensed professional counselor designated as a mental health service provider as of June 30, 2026, must be converted to a licensed professional counselor license.

(B) The board shall reissue a licensed professional counselor license to the person as described in subdivision (b)(3)(A).

SECTION 22. Tennessee Code Annotated, Section 63-22-107, is amended by deleting subsections (d)-(f).

SECTION 23. Tennessee Code Annotated, Section 63-22-116(a)(1), is amended by deleting "a professional counselor" and substituting "a limited practice professional counselor or licensed professional counselor".

SECTION 24. Tennessee Code Annotated, Section 63-22-116(a)(1)(B), is amended by deleting the subdivision and substituting:

(B) The applicant has:

(i) A conferred graduate degree consisting of a minimum of fifty-two (52) hours in counseling or a related field from an accredited program that were earned prior to 2016;

(ii) Practiced as a licensed professional counselor or a limited practice professional counselor, or an equivalent license to a limited practice professional counselor from another state, for a minimum of twenty-five (25) years; and

(iii) Met the requirements of § 63-22-104(a)(4)-(7) and § 63-22-104(b)(1) and (2) for a licensed professional counselor or § 63-22-104(a)(4)-(7) for a limited practice professional counselor license.

SECTION 25. Tennessee Code Annotated, Section 63-22-116(a)(2), is amended by deleting the subdivision.

SECTION 26. Tennessee Code Annotated, Section 63-22-117(a)(1)(A), is amended by deleting "such as, "licensed professional counselor" without being" and substituting "such as, "licensed professional counselor" or "limited practice professional counselor" without being".

SECTION 27. Tennessee Code Annotated, Section 63-22-117(b), is amended by deleting the subsection and substituting:

(b) This part does not permit a licensed professional counselor or limited practice professional counselor to engage in the practice of licensed psychological examiner, licensed senior psychological examiner, certified psychological assistant, licensed psychologist, licensed social worker, psychiatric nurse, law, or medicine.

SECTION 28. Tennessee Code Annotated, Section 63-22-117(c), is amended by deleting the subsection and substituting:

(c) This part does not apply to a person if the person is preparing for the practice of counseling pursuant to this chapter under qualified supervision.

SECTION 29. Tennessee Code Annotated, Section 63-22-117(d), is amended by deleting "certified or licensed professional counselor" and substituting "a licensed professional counselor or limited practice professional counselor".

SECTION 30. Tennessee Code Annotated, Section 63-22-118(a), is amended by deleting the subsection and substituting:

(a) Notwithstanding § 63-22-122, this part does not apply to the following:

(1) A person regulated by the board of nursing or the state board of education; or

(2) A professional counselor employed in a community or human services agency and working directly under the supervision of a qualified mental health professional, as defined in § 33-1-101.

SECTION 31. Tennessee Code Annotated, Section 63-22-120, is amended by deleting the section.

SECTION 32. Tennessee Code Annotated, Section 63-22-121(a)(1), is amended by deleting the subdivision and substituting:

(1) The board may issue an associate license for a licensed professional counselor applicant who has completed the academic coursework and training required for the license sought and who has successfully passed the examination required by the board.

SECTION 33. Tennessee Code Annotated, Section 63-22-122, is amended by deleting subdivisions (3), (4), and (5) and substituting:

(3)

(A) "Limited practice professional counselor" means a person licensed under this part who:

(i) Is professionally trained in counseling and guidance services designed to facilitate normal human growth and development through individual, family, or group counseling;

(ii) Is professionally trained in educational procedures, assessment, consultation, and research; and

(iii) Assists individuals by the practice of counseling with their personal, social, career, or educational development as they pass through life stages.

(B) As used in subdivision (3)(A), "practice of counseling" means rendering or offering to render to individuals, groups, organizations, or the general public a service involving the application of principles, techniques, methods, or procedures of the counseling profession, including appraisal activities, counseling, consulting, and referral activities.

(C) This subdivision (3) does not permit a limited practice professional counselor to appraise, diagnose, or treat a mental, emotional, or adjustment disorder other than marital problems, parent-child problems, child and adolescent antisocial behavior, adult antisocial behavior, other specified family circumstances, other interpersonal problems, phase of life problems, other life circumstance problems, occupational problems, and uncomplicated bereavement; and

(4)

(A) "Licensed professional counselor" means a person licensed under this part who:

(i) Is professionally trained in the practice of counseling and guidance services designed to facilitate normal human growth and development through individual, family, or group counseling;

(ii) Is professionally trained in educational procedures, assessment, consultation, and research;

(iii) Assists individuals by the practice of counseling with their personal, social, career, or educational development as they pass through life stages; and

(iv) Applies mental health and human development principles in order to:

(a) Facilitate human development and adjustment throughout the life span;

(b) Prevent, diagnose, and treat mental, emotional, or behavioral disorders and associated disorders that interfere with mental health;

(c) Conduct assessments and diagnoses for the purpose of establishing treatment goals and objectives within the limitations prescribed in subdivision (1); and

(d) Plan, implement, and evaluate treatment plans using counseling treatment interventions.

(B) This subdivision (4) does not permit:

(i) The performance of an act that a licensed professional counselor is not educated and trained to perform; or

(ii) The designation of testing reports as psychological.

(C) As used in this subdivision (4):

(i) "Counseling treatment interventions" means the application of cognitive, affective, behavioral, and systemic counseling strategies that include principles of development, wellness, and pathology that reflect a pluralistic society; and

(ii) "Practice of counseling" means rendering or offering to render to individuals, groups, organizations, or the general public a service involving the application of principles, techniques, methods, or procedures of the counseling profession, including appraisal activities, counseling, consulting, and referral activities.

SECTION 34. Tennessee Code Annotated, Section 63-22-206(a)(4), is amended by deleting "a professional counselor designated as a mental health service provider" and substituting "a licensed professional counselor".

SECTION 35. Tennessee Code Annotated, Section 63-32-102(b), is amended by deleting "professional counselor" and substituting "limited practice professional counselor, licensed professional counselor".

SECTION 36. This act takes effect January 1, 2027, the public welfare requiring it.